

## Tentative Rulings for July 6, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary  
Carol Delfosse-Kidd at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                                                                            | HEARING NAME                                           |
|-------------|--------------------------------------------------------------------------------------|--------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE<br>RECOVERY II LLC, A<br>CALIFORNIA LIMITED<br>LIABILITY COMPANY | MOTION TO BE RELIEVED AS<br>COUNSEL FOR MICHAEL BLISKO |

**Tentative Ruling:** No tentative ruling. Motion was withdrawn on 6.29.26.

The court notes that there was a substitution of attorney filed on 6.11.26 indicating that attorney Brandon D. Saxon is the new legal representative for Defendant Michael Blisko.

2.

| CASE #      | CASE NAME                                                                            | HEARING NAME                                          |
|-------------|--------------------------------------------------------------------------------------|-------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE<br>RECOVERY II LLC, A<br>CALIFORNIA LIMITED<br>LIABILITY COMPANY | MOTION TO BE RELIEVED AS<br>COUNSEL FOR BRYAN PICKRYL |

**Tentative Ruling:** Motion to be Relieved as Counsel for Defendant Bryan Pickryl GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Bryan Pickryl shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel or proceeding pro per in this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

3.

| CASE #      | CASE NAME                                                                            | HEARING NAME                                                                                     |
|-------------|--------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE<br>RECOVERY II LLC, A<br>CALIFORNIA LIMITED<br>LIABILITY COMPANY | MOTION TO BE RELIEVED AS<br>COUNSEL FOR DISCOVERY POINT<br>RETREAT, INC., A TEXAS<br>CORPORATION |

**Tentative Ruling:** Motion to be Relieved as Counsel for Defendant Discovery Point Retreat Inc. GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Discovery Point Retreat Inc. shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel for this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

4.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                                |
|-------------|-----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY | MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) BY LATOYA HORN |

**Tentative Ruling:** Pursuant to CCP §2031.010, a party may demand that any other party produce a document that is in the possession of another party for inspection. Likewise, any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) A party responding to an interrogatory or request for production must serve a response within 30 days after service of the request. (CCP §§ §2030.260(a); 2031.260(a).) If the responding party fails to serve a timely response, the party waives all objections, including those based on privilege. (CCP §§ 2030.290(a); 2031.300(a).) There is no time limit for such motions and no meet and confer requirement. (*Sinaiko Healthcare Consulting Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 411.)

On November 21, 2025, Plaintiff served the first set of written discovery on Defendant. (RFP Decl. of Van Hook, ¶ 4; Ex. 2.) Thus, the initial response deadline was December 23, 2026. (Id.) However, Plaintiff granted six extensions of the response deadline up to March 27, 2026. (Id at ¶¶ 5-10; Ex. 4-8.) Defendant did not serve any responses prior to the extended deadline. (Id at ¶ 11.) Accordingly, Defendant waived objections as of that date. On April 24, 2026, Defendant served responses containing only objections. (Id at ¶ 17.)

Defendant argues that good cause for delay exists because its former counsel identified a potential conflict of interest in representing all Defendants in the action. Defendant's current counsel indicates that Plaintiff's counsel was first informed about the potential conflict on February 27, 2026 by former counsel. (Decl. of Eguiluz, ¶ 6; Ex. A.) The email states that former counsel was working through the potential conflict resulting from financial pressures in the business, which counsel hoped to have cleared by the following week. (Id.) Counsel requested additional time for the discovery. (Id.) Plaintiff granted an extension. (Decl. of Van Hook, Ex. 6.) However, Plaintiff's counsel asserts that the parties did not discuss or agree to an abeyance of the discovery deadline. (Id at ¶ 11.)

On March 26, 2026, the parties filed a Stipulation and (Proposed) Order Continuing Mediation Completion Deadline and Trial Setting Conference. (Decl. of Eguiluz, Ex. B.) Defendant argues this Stipulation evidences an agreement to an abeyance of the discovery deadline. However, the Stipulation provides only for continuance of the OSC and TSC to dates after November 20, 2026. The Stipulation refers to discovery only as a basis for the cause for the continuances. (Id ["Whereas, the discovery responses by Bella Monte Recovery II LLC have been delayed due to potential conflicts that have arisen among the Defendants, which may result in one or more of the Defendants retaining

separate defense counsel.”] There was no stipulation to continue any discovery deadlines. Accordingly, Defendant has not established that the discovery responses served on April 24, 2026 were timely. Because the responses were untimely, objections were waived.

**Sanctions:**

The court shall impose a monetary sanction against a party who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §§ 2031.300; 2031.300(c).) A responding party’s untimely discovery responses do not divest the trial court of the authority to hear a motion to compel. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 407.) The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though the requested discovery was provided to the moving party after the motion was filed. (Id at 409.)

While there was clearly a significant delay in responding to the discovery requests which appears to continue, it appears that Defendant’s failure to timely respond was substantially justified by a purported conflict of interest, which prevented former counsel from continuing representation. While the circumstances are somewhat vague, Defendant has established that sanctions are not warranted. The requests for sanctions should be denied.

Motion to Compel Responses to Requests for Production, Set One, GRANTED.

Defendant to provide verified code-compliant responses and documents, without objection, within 30 days.

Plaintiff’s Request for Sanctions DENIED.

Defendant’s Request for Sanctions DENIED.

5.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                                                              |
|-------------|-----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY | MOTION TO COMPEL ANSWER/RESPONSE TO SPECIAL INTERROGATORIES RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) BY LATOYA HORN |

**Tentative Ruling:**

Motion to Compel Responses to Special Interrogatories, Set One, GRANTED.

Defendant to provide verified code-compliant responses, without objection, within 30 days.

Plaintiff’s Request for Sanctions DENIED.

Defendant's Request for Sanctions DENIED.

6.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                                 |
|-------------|-----------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY | MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES - EMPLOYMENT LAW (SET ONE) BY LATOYA HORN |

**Tentative Ruling:**

Motion to Compel Responses to Form Interrogatories Employment Law, Set One, GRANTED.

Defendant to provide verified code-compliant responses, without objection, within 30 days.

Plaintiff's Request for Sanctions DENIED.

Defendant's Request for Sanctions DENIED.

7.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                              |
|-------------|-----------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY | MOTION TO BE RELIEVED AS COUNSEL FOR DISCOVERY MSO LLC, A TEXAS LIMITED LIABILITY COMPANY |

**Tentative Ruling:** Motion to be Relieved as Counsel for Defendant Discovery MSO, LLC GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Discovery MSO, LLC shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel for this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

8.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                                         |
|-------------|-----------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY | MOTION TO BE RELIEVED AS COUNSEL FOR NIZNIK BEHAVIORAL HEALTH RESOURCES INC., A DELAWARE CORPORATION |

**Tentative Ruling:** Motion to be Relieved as Counsel for Defendant Niznik Behavioral Health Resources, Inc. GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Niznik Behavioral Health Resources Inc. shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel for this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

9.

| CASE #      | CASE NAME                           | HEARING NAME                                                     |
|-------------|-------------------------------------|------------------------------------------------------------------|
| CVPS2503186 | HORN VS BELLA MONTE RECOVERY II LLC | MOTION TO BE RELIEVED AS COUNSEL FOR BELLA MONTE RECOVERY II LLC |

**Tentative Ruling:** No tentative ruling. Motion was withdrawn on 6.29.26.

The court notes that there was a substitution of attorney filed on 6.11.26 indicating that attorney Brandon D. Saxon is the new legal representative for Defendant Bella Monte Recovery II, LLC.

10.

| CASE #      | CASE NAME                              | HEARING NAME                                                                               |
|-------------|----------------------------------------|--------------------------------------------------------------------------------------------|
| CVPS2509119 | PADILLA VS TOYOTA MOTOR SALES USA INC. | DEMURRER ON 1ST AMENDED COMPLAINT OF MARY QUITIQUIT PADILLA BY TOYOTA MOTOR SALES USA INC. |

**Tentative Ruling:** No tentative ruling. No hearing on the demurrer.

The court notes that Defendant's Demurrer is captioned as "Demurrer to Plaintiff's Second Amended Complaint" and refers to a SAC multiple times in the motion. In their opposition, Plaintiff references a Second Amended Complaint as well. According to the court's register, following a sustained demurrer to the original complaint on 3.24.26, Plaintiff filed a First Amended Complaint on 4.01.26. No demurrer was filed as to that

operative pleading. A Second Amended Complaint was e-filed by Plaintiff on 5.14.26 and rejected by the clerk's office on 5.20.26 for failure to obtain leave of court. A demurrer to a SAC was filed by Defendant on 6.10.26. Thus, it is unclear whether Defendant is demurring to a document that has not been accepted by the court, or incorrectly referred to a SAC when the demurrer was as to the FAC.

Parties are to be prepared to discuss the above issue.

11.

| CASE #      | CASE NAME          | HEARING NAME                                                                          |
|-------------|--------------------|---------------------------------------------------------------------------------------|
| CVPS2603254 | LIVRERI VS LIVRERI | DEFENDANT PETER LIVRERI'S<br>GENERAL AND SPECIAL DEMURRER<br>TO PLAINTIFF'S COMPLAINT |

**Tentative Ruling:**

No opposition filed.

Demurrer is SUSTAINED with leave to amend. Plaintiff is directed to file an amended complaint within 30 days, specifically addressing jurisdiction of this court for this type of matter, specifically why this is an unlimited jurisdiction case and also why this matter should not be in probate court.

Case Management Conference remains set for 11.03.26.